

UPSC GS-II POLITY

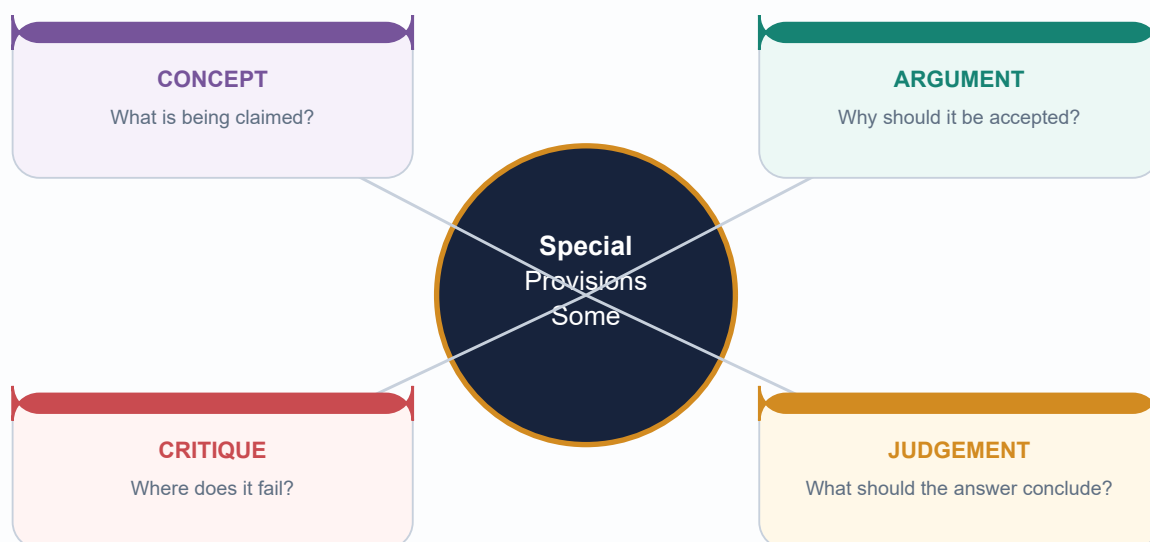
Special Provisions for Some States

Integrated Basic + Advanced Course

10 deep-learning modules | Articles 370-371-J, Part XXI

Institutional maps, timelines, comparisons, UPSC traps and Mains frameworks

Prepared from the verified Polity knowledge base (Laxmikant Ch. 37)



Facts from official sources | Inferences clearly marked | No fabricated data

HIGH UPSC RELEVANCE

HIGH

1. Asymmetric Federalism: Why Part XXI Exists

GS-II Polity -
Asymmetric
Federalism

NEWS TRIGGER

Discussions of India's federal design routinely invoke Part XXI to show that not every state is governed on identical terms.

INTRO & ORIGIN

India practises asymmetric federalism — some states receive special constitutional provisions to protect tribal customs, backward regions, or law-and-order needs. These sit in Part XXI, 'Temporary, Transitional and Special Provisions.'

WHAT PART XXI CONTAINS

Part XXI Special Provisions

Article 370 Former special status of Jammu & Kashmir — inoperative since 5 August 2019	Articles 371-371J Special provisions for 12 named states
Not original None of these provisions were part of the original 1950 Constitution — all added by later amendments	Aim Protect tribal/cultural interests, backward regions, or address disturbed law and order

STATIC THEORY

- Both Article 370 (J&K) and Articles 371-371J (12 states) are located in Part XXI, alongside other temporary and transitional provisions of the Constitution.
- None of these special provisions existed in the Constitution as originally adopted — each was inserted subsequently, typically via a specific constitutional amendment tailored to that state.

MEMORY HOOK

Part XXI = 'Temporary, Transitional & Special' -> Article 370 (J&K) + Articles 371-371J (12 states).

MUST-KNOW FACTS

1. Article 370 and Articles 371-371J both sit in Part XXI.
2. 12 states currently have Article 371-series special provisions.
3. None of these special provisions were part of the original Constitution.

UPSC TRAPS

WRONG: Special provisions for states are located in Part III (Fundamental Rights).

CORRECT: They are located in Part XXI, 'Temporary, Transitional and Special Provisions.'

MAINS ANGLE

Frame asymmetric federalism as a deliberate constitutional design choice to accommodate India's diversity, not an afterthought or an anomaly.

STUDY LINK

Polity -> Federalism -> Asymmetric federalism
| Part XXI

HIGH

2. Article 370: The Original Design of J&K's Special Status

GS-II Polity -
Article 370
(Original)

INTRO & ORIGIN

Article 370, in Part XXI, gave Jammu & Kashmir a special autonomous status — its own constitution, a separate flag, and a requirement that most Union laws apply only with the state's concurrence.

KEY DATA

Feature	J&K; under original Article 370
Own constitution	J&K; had a separate state constitution
Separate flag	J&K; had its own state flag
Union law application	Applied only with state concurrence, barring specified subjects
Permanent residents / property	Governed via Article 35A (1954 Presidential Order)

STATIC THEORY

- Article 35A, added by a 1954 Presidential Order, empowered J&K's legislature to define 'permanent residents' and confer special rights/privileges on them, including over property.
- Under the original design, laws made by Parliament applied to J&K only with the concurrence of the state government, except in specified areas such as defence, foreign affairs and communications.

MEMORY HOOK

370 = special status; 35A = permanent residents & property rights, added 1954.

MUST-KNOW FACTS

1. Article 370 sat in Part XXI, described as a 'temporary' provision.
2. Article 35A was added by a Presidential Order in 1954, not by a parliamentary amendment.
3. J&K had its own constitution and flag under the original Article 370 arrangement.

UPSC TRAPS

WRONG: Article 370 was a permanent, unchangeable feature of the Constitution.

CORRECT: It was textually placed under 'temporary' provisions in Part XXI, which the Supreme Court later relied on to explain its removability.

MAINS ANGLE

Establish the original design of Article 370 clearly before discussing its abrogation — many answers lose marks by jumping straight to 2019 without explaining what actually changed.

STUDY LINK

Polity -> Article 35A | Federalism -> State autonomy

HIGH

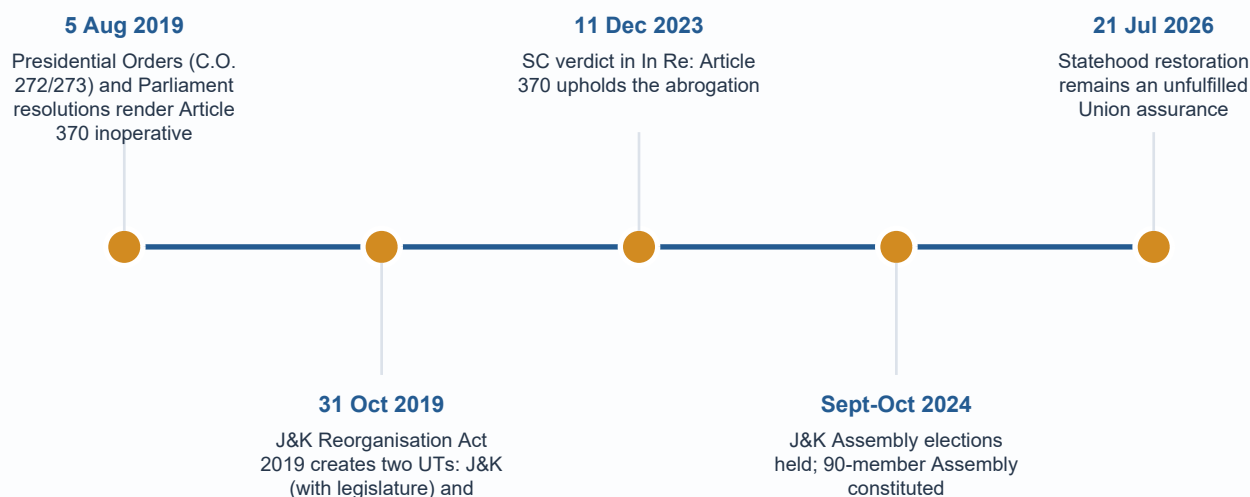
3. Abrogation of Article 370: The 2019-2026 Timeline

GS-II Polity -
Article 370
Abrogation

NEWS TRIGGER

Verified status as of 21 July 2026: statehood for J&K remains an unfulfilled Union assurance even after the 2024 Assembly elections.

FROM ABROGATION TO PRESENT STATUS



STATIC THEORY

- The abrogation was carried out through Presidential Orders (C.O. 272 and 273) combined with Parliament resolutions, not through a fresh constitutional amendment under Article 368.
- The J&K Reorganisation Act, 2019 split the former state into two Union Territories with effect from 31 October 2019 — J&K (retaining a legislature) and Ladakh (without a legislature).

MEMORY HOOK

5 Aug 2019 abrogation -> 31 Oct 2019 two UTs -> 11 Dec 2023 SC upholds -> 2024 elections -> statehood still pending.

MUST-KNOW FACTS

1. Article 370 was made inoperative via Presidential Orders C.O. 272/273 plus Parliament resolutions, effective 5 August 2019.
2. The J&K Reorganisation Act 2019 took effect on 31 October 2019, creating J&K and Ladakh as separate UTs.
3. As of the verified status date (21 July 2026), J&K's statehood has not been restored despite the 2024 Assembly elections.

UPSC TRAPS

WRONG: Article 370 was abrogated through a constitutional amendment under Article 368.

CORRECT: It was done via Presidential Orders and Parliament resolutions, a route the Supreme Court upheld in 2023.

WRONG: J&K's statehood was restored once Assembly elections were held in 2024.

CORRECT: Elections were held in 2024, but statehood restoration remains a pending Union assurance, not an accomplished fact.

MAINS ANGLE

Keep the abrogation mechanism (Presidential Orders + resolutions), the Reorganisation Act's UT structure, and the still-pending statehood question as three distinct, clearly sequenced facts — do not conflate them.

STUDY LINK

Polity -> J&K Reorganisation Act 2019 |
Current Affairs -> Statehood status

HIGH

4. In Re: Article 370 (2023) — What the Supreme Court Actually Held

GS-II Polity -
Verdict Analysis

THE SUPREME COURT'S REASONING (11 DEC 2023)

1. Upheld the abrogation

The Court unanimously upheld the constitutional steps taken to render Article 370 inoperative.



2. Article 370 held 'temporary'

The Court held that Article 370 was always a temporary provision, consistent with its placement in Part XXI.



3. No internal sovereignty

J&K retained no internal sovereignty distinct from any other state after accession.



4. Directed Assembly elections by Sept 2024

The Court directed that Assembly elections be conducted by September 2024.



5. Recorded Union's assurance on statehood

The Court recorded the Union's assurance that statehood would be restored 'at the earliest', but fixed no judicial deadline for it.

STATIC THEORY

- The judgment carefully distinguishes between what the Court directed (Assembly elections by September 2024) and what it merely recorded as an executive assurance (statehood 'at the earliest') — the Court did not itself impose a statehood deadline.
- This distinction matters for accuracy: describing the verdict as having 'ordered' statehood restoration by a fixed date would be incorrect.

MEMORY HOOK

SC 2023 = upheld abrogation + directed elections by Sept 2024 + recorded (not ordered) statehood assurance.

MUST-KNOW FACTS

1. The verdict came on 11 December 2023 in In Re: Article 370.
2. The Court unanimously upheld the abrogation.
3. The Court directed Assembly elections by September 2024.
4. The Court recorded, but did not judicially mandate with a deadline, the Union's assurance on restoring statehood.

UPSC TRAPS

WRONG: The Supreme Court ordered that J&K statehood be restored by a fixed date.

CORRECT: The Court only recorded the Union's assurance that statehood would be restored 'at the earliest' — it set no judicial deadline.

WRONG: The Court found that J&K retained internal sovereignty even after 2019.

CORRECT: The Court held that J&K retained no internal sovereignty distinct from other states.

MAINS ANGLE

In any answer analysing the 2023 verdict, separate the Court's binding directions (elections by Sept 2024) from its non-binding recording of the Union's statehood assurance — this precision is what distinguishes a strong answer.

STUDY LINK

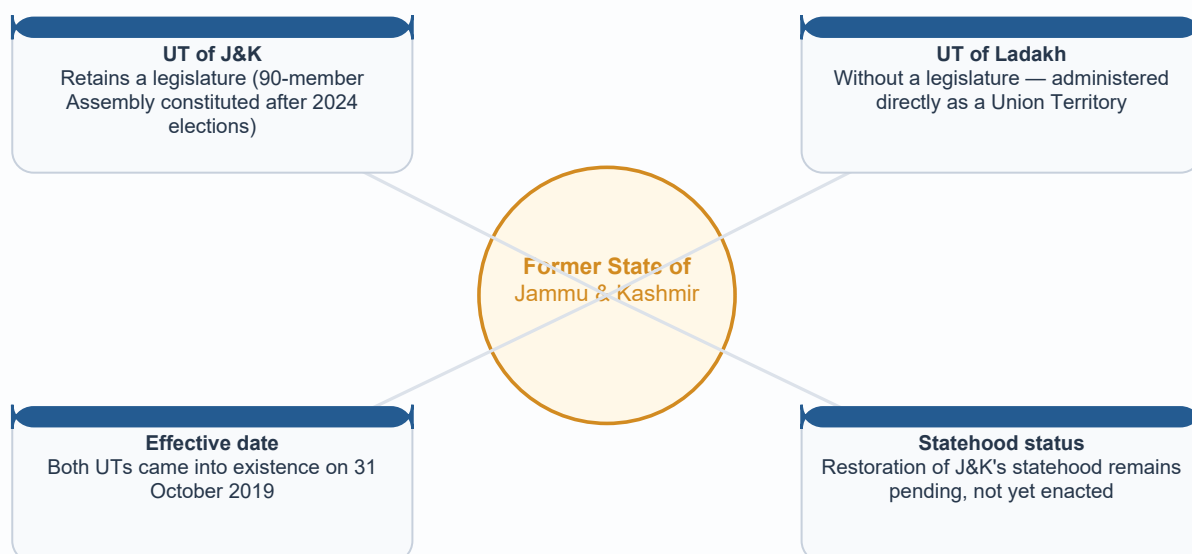
Polity -> Judicial Review | Current Affairs -> J&K statehood debate

HIGH

5. J&K Reorganisation Act 2019: Two Union Territories, One Legislature

GS-II Polity - UT
Structure

THE POST-2019 UNION TERRITORY STRUCTURE



STATIC THEORY

- The J&K Reorganisation Act, 2019 bifurcated the former state into two distinct Union Territories rather than one — J&K, which retains its own legislature, and Ladakh, which does not.
- This makes J&K a Union Territory that nonetheless has an elected legislature — a structure that must not be confused with an ordinary state legislature or treated as identical to Delhi's UT arrangement.

MEMORY HOOK

2019 Act = TWO UTs: J&K (with legislature) + Ladakh (without legislature).

MUST-KNOW FACTS

1. J&K and Ladakh became separate Union Territories on 31 October 2019.
2. Only the UT of J&K has a legislature; Ladakh does not.
3. The 90-member J&K Assembly was constituted after the 2024 elections.

UPSC TRAPS

WRONG: Both J&K and Ladakh have their own legislatures.

CORRECT: Only J&K has a legislature; Ladakh is administered without one.

WRONG: J&K's UT-with-legislature model is constitutionally identical to Delhi's.

CORRECT: It has its own distinct statutory basis under the 2019 Act and should not be treated as identical to Delhi.

MAINS ANGLE

Use the J&K-vs-Ladakh contrast (legislature vs no legislature) to illustrate that 'Union Territory' is not a single uniform category — each UT's powers depend on its specific enabling law.

STUDY LINK

Polity -> Union Territories | Delhi's Government of NCT Act (comparison)

HIGH

6. Articles 371-371J: Special Provisions for 12 States

GS-II Polity -
Article 371 Series

NEWS TRIGGER

Debates on extending special protections (Article 371-type safeguards) to other regions keep this table of 12 states directly relevant to current federal-design discussions.

KEY DATA

Article	State(s)	Core special provision
371	Maharashtra & Gujarat	Governor's special responsibility for development boards (Vidarbha, Marathwada / Saurashtra, Kutch)
371-A	Nagaland	Parliament laws on Naga customary law, land, civil/criminal justice don't apply unless the Assembly decides; Governor's special law-and-order role
371-B	Assam	Committee of the Assembly for Tribal Areas
371-C	Manipur	Committee of the Assembly for Hill Areas; Governor's special responsibility
371-D / E	Andhra Pradesh & Telangana	Equitable public employment/education ('local cadres'); Administrative Tribunal; Central University (371-E)
371-F	Sikkim	Assembly of at least 30 members; 1 Lok Sabha seat; protection of population sections (36th Amendment, 1975)
371-G	Mizoram	Parliament laws on Mizo customary law, land, justice don't apply unless the Assembly decides; Assembly of at least 40 members
371-H	Arunachal Pradesh	Governor's special law-and-order responsibility; Assembly of at least 30 members
371-I	Goa	Assembly of at least 30 members
371-J	Karnataka	Development board plus reservation (education + jobs) for the Hyderabad-Karnataka region (98th Amendment)

STATIC THEORY

- None of Articles 371-371J were part of the original Constitution — each was inserted by a later constitutional amendment tailored to that state's specific concern.
- The provisions cluster around three purposes: protecting tribal/customary interests (371-A, 371-B, 371-C, 371-G), correcting regional development imbalance (371, 371-D/E, 371-J), or guaranteeing minimum representation for small states (371-F, 371-H, 371-I).

MEMORY HOOK

371 family = Maharashtra/Gujarat, Nagaland, Assam, Manipur, AP/Telangana, Sikkim, Mizoram, Arunachal, Goa, Karnataka — 12 states, one article family.

MUST-KNOW FACTS

- 12 states carry Article 371-series special provisions.
- 371-D was extended to Telangana in 2014, after the state's creation.
- 371-J's Hyderabad-Karnataka reservation was added by the 98th Amendment (2012).

UPSC TRAPS

WRONG: One single Article 371 clause covers all north-eastern special-provision states.

CORRECT: Each state has its own distinct clause — 371-A Nagaland, 371-B Assam, 371-C Manipur, 371-G Mizoram, 371-H Arunachal Pradesh.

WRONG: Article 371-D applies only to Andhra Pradesh.

CORRECT: It was extended to Telangana in 2014, after Telangana's formation.

MAINS ANGLE

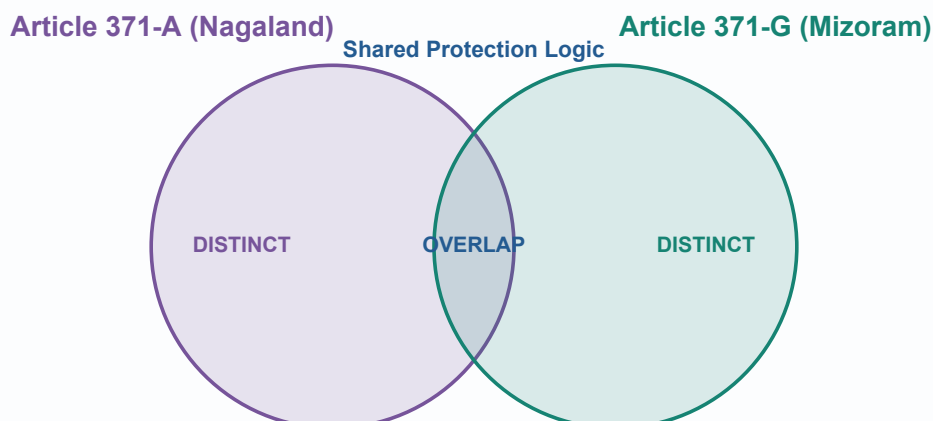
Group the 12 states by purpose (tribal/customary protection, regional development balance, minimum representation) rather than listing them alphabetically — this thematic grouping scores better in a Mains answer.

STUDY LINK

Polity -> Part XXI | Federalism -> Regional autonomy provisions

HIGH**7. The Strongest Protections: Article 371-A and 371-G**

GS-II Polity -
Customary Law
Protection

NAGALAND (371-A) VS MIZORAM (371-G): SHARED DESIGN**Article 371-A (Nagaland)**

- Covers Naga customary law and procedure specifically
- Governor has a special law-and-order responsibility

Shared Protection Logic

- Union laws on customary law, land ownership/transfer, and civil/criminal justice administration don't apply unless the state Assembly decides
- Regarded as the strongest protections in the Article 371 family

Article 371-G (Mizoram)

- Covers Mizo customary law and procedure specifically
- Assembly must have at least 40 members

Both provisions require the state's own Assembly to consent before Parliament's ordinary laws on customary law/land can apply.

STATIC THEORY

- Articles 371-A (Nagaland) and 371-G (Mizoram) are considered the strongest protections in the Article 371 family because Parliament's laws on customary law, land ownership/transfer, and civil/criminal justice administration cannot apply to these states unless their own Assemblies specifically decide to adopt them.
- This is a materially stronger safeguard than most other Article 371 provisions, which mainly deal with development boards, reservation, or minimum Assembly strength rather than a veto over Parliament's ordinary legislative competence.

MEMORY HOOK

371-A and 371-G = Assembly consent required before Union law on customary law/land applies — the strongest safeguard in the 371 family.

MUST-KNOW FACTS

1. 371-A protects Naga customary law, land and justice administration from automatic application of Union laws.
2. 371-G gives Mizoram the same category of protection for Mizo customary law and land.
3. These are distinct from, and should not be confused with, the Sixth Schedule's autonomous district councils.

UPSC TRAPS

WRONG: Articles 371-A and 371-G allow Parliament to override state customary law freely.

CORRECT: Union laws on customary law/land do NOT apply to these states unless the state Assembly itself decides to adopt them.

WRONG: 371-A/371-G are the same mechanism as the Sixth Schedule.

CORRECT: They are separate mechanisms — 371-A/G are state-specific constitutional articles, while the Sixth Schedule creates autonomous district councils in Assam, Meghalaya, Tripura and Mizoram.

MAINS ANGLE

Use 371-A/371-G as the strongest textbook example of constitutionally entrenched local consent — a genuine veto power for a state Assembly over specific categories of Union legislation.

STUDY LINK

Polity -> Sixth Schedule (contrast) | Tribal Autonomy provisions

HIGH

8. Local Cadres, Tribunals and Reservation: 371-D/E and 371-J

GS-II Polity -
Regional Equity
Provisions

KEY DATA

Provision	State(s)	Mechanism
Article 371-D	Andhra Pradesh (extended to Telangana, 2014)	Equitable opportunities in public employment/education through 'local cadres'; a dedicated Administrative Tribunal
Article 371-E	Andhra Pradesh	Provides for a Central University in the state
Article 371-J	Karnataka	Development board plus reservation in education and jobs for the Hyderabad-Karnataka region, added by the 98th Amendment (2012)

STATIC THEORY

- 371-D and 371-J both address intra-state regional imbalance through employment/education mechanisms — local cadres and an Administrative Tribunal in AP/Telangana, and region-specific reservation for Hyderabad-Karnataka.
- 371-D was originally confined to Andhra Pradesh and was extended to Telangana only in 2014, following the state's bifurcation.

MEMORY HOOK

371-D/E = AP/Telangana local cadres + tribunal; 371-J = Karnataka's Hyderabad-Karnataka reservation (98th Amdt).

MUST-KNOW FACTS

1. 371-D provides for local cadres and an Administrative Tribunal in AP and Telangana.
2. 371-J's reservation provision for Hyderabad-Karnataka was added by the 98th Amendment in 2012.
3. 371-E specifically provides for a Central University in Andhra Pradesh.

UPSC TRAPS

WRONG: 371-J has existed since the original Constitution.

CORRECT: It was inserted by the 98th Amendment in 2012, much later than the original text.

MAINS ANGLE

Pair 371-D/E and 371-J together in any answer on regional imbalance within a state — both use the same underlying tools of local cadres/reservation plus a dedicated institutional mechanism.

STUDY LINK

Polity -> Regional development boards |
Reservation policy

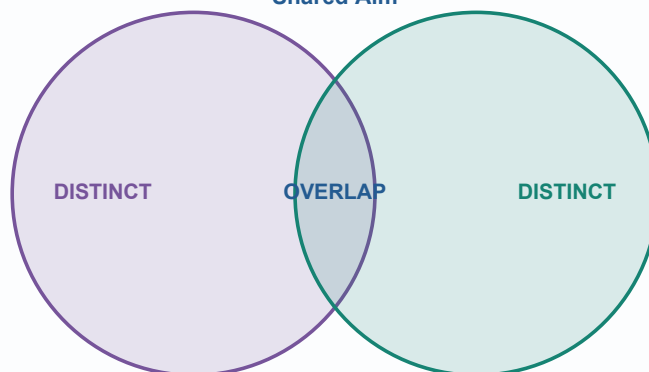
HIGH

9. Article 371 vs the Sixth Schedule vs the Fifth Schedule

GS-II Polity -
Tribal
Governance
Mechanisms

NEWS TRIGGER

Ladakh's demand for Sixth Schedule status makes the distinction between Article 371, the Sixth Schedule and the Fifth Schedule an actively relevant comparison.

THREE DISTINCT TRIBAL/REGIONAL PROTECTION MECHANISMS**Article 371 series****Shared Aim****Sixth Schedule****Article 371 series**

- State-specific constitutional articles (371-A to 371-J)
- Governor plays a special role in several of these states
- Applies to 12 named states, individually

Shared Aim

- Protect tribal/cultural interests or backward regions
- Reflect India's asymmetric, accommodative federal design

Sixth Schedule

- Creates Autonomous District Councils with legislative/judicial/financial powers
- Applies specifically to tribal areas in Assam, Meghalaya, Tripura and Mizoram
- A distinct schedule-based mechanism, not a Part XXI article

The Fifth Schedule (Scheduled Areas administration, not shown above) is a third, separate mechanism, applicable to Scheduled Areas in several other states.

STATIC THEORY

- The Sixth Schedule creates Autonomous District Councils with their own legislative, judicial and financial powers within tribal areas of Assam, Meghalaya, Tripura and Mizoram — this is structurally different from the Article 371 series, which operates through state-specific constitutional articles rather than autonomous councils.
- The Fifth Schedule governs the administration of Scheduled Areas and Scheduled Tribes in states other than those covered by the Sixth Schedule, and is a further distinct mechanism from both Article 371 and the Sixth Schedule.

MEMORY HOOK

371 = state-specific articles | Sixth Schedule = autonomous district councils
(Assam/Meghalaya/Tripura/Mizoram) | Fifth Schedule = Scheduled Areas administration elsewhere.

MUST-KNOW FACTS

1. The Sixth Schedule applies to tribal areas in Assam, Meghalaya, Tripura and Mizoram specifically.
2. Article 371 and the Sixth Schedule are separate mechanisms and must not be equated.
3. Ladakh's demand for Sixth Schedule status/statehood remains a political proposal, not an enacted constitutional change.

UPSC TRAPS

WRONG: Sixth Schedule protections are the same as Article 371 special provisions.

CORRECT: They are distinct mechanisms — Sixth Schedule creates autonomous district councils; Article 371 gives state-specific constitutional protections.

WRONG: Ladakh has already been granted Sixth Schedule status.

CORRECT: This remains a political demand/proposal, not an enacted constitutional change.

MAINS ANGLE

A high-value comparative answer keeps Article 371, the Sixth Schedule and the Fifth Schedule as three separate mechanisms addressing overlapping but distinct concerns — never merge them.

STUDY LINK

Polity -> Fifth Schedule | Sixth Schedule | Tribal governance

HIGH**10. Verified PYQ: J&K's Legislative Assembly After 2019 (2025)**

GS-II Polity -
PYQ Application

NEWS TRIGGER

This is a verified Mains PYQ from the source material, used here strictly as recorded — 2025 GS-II, Question 4, 10 marks, 150 words.

INTRO & ORIGIN

'Discuss the nature of Jammu and Kashmir Legislative Assembly after the Jammu and Kashmir Reorganization Act, 2019. Briefly describe the powers and functions of the Assembly of the Union Territory of Jammu and Kashmir.'

VERIFIED ANSWER ROUTE FOR THIS PYQ**1. Establish the legal basis**

The J&K Assembly functions as a UT legislature under the J&K Reorganisation Act, 2019 — not as a State legislature.

**2. State its functions**

Elected law-making and financial/accountability functions, similar in form to a State Assembly.

**3. Identify the exclusions**

Certain subjects are excluded from its competence, and a Union/Lieutenant Governor override architecture applies.

**4. Compare, don't equate**

Compare with a State legislature's powers, without treating J&K as constitutionally identical to Delhi's UT arrangement.

STATIC THEORY

- The verified answer route treats the J&K Assembly as a UT legislature specifically created by the 2019 Act, with elected law-making and financial/accountability functions.
- It is subject to defined exclusions and a Union/Lieutenant Governor override architecture, and while comparable to a State legislature in form, it should not be treated as constitutionally identical to Delhi's UT model.

MEMORY HOOK

J&K Assembly = UT legislature (2019 Act) -> elected + financial functions -> exclusions + LG override -> not the same as Delhi.

MUST-KNOW FACTS

1. This is a verified 2025 GS-II Mains question (10 marks, 150 words).
2. J&K's Assembly derives its powers from the J&K Reorganisation Act, 2019, as a Union Territory legislature.
3. A Lieutenant Governor/Union override architecture applies to its functioning, alongside specific subject-matter exclusions.

UPSC TRAPS

WRONG: J&K's post-2019 Assembly has exactly the same powers as a full State legislature.

CORRECT: It is a UT legislature under the 2019 Act, subject to exclusions and a Union/LG override architecture — not identical to a State Assembly.

WRONG: J&K's UT legislature model is the same as Delhi's.

CORRECT: It rests on its own distinct statutory basis under the 2019 Act and should not be treated as constitutionally identical to Delhi.

MAINS ANGLE

For this exact PYQ, structure the 150-word answer as: (1) legal basis (2019 Act, UT legislature), (2) powers/functions (law-making, financial, accountability), (3) exclusions and override architecture, (4) a brief, careful comparison with a State legislature.

STUDY LINK

Polity -> Union Territories | J&K Reorganisation Act 2019